

Opinion of the Court

and inviolable sovereignty.’ The Federalist No. 39, p. 245 (C. Rossiter ed. 1961). Thus, both the Federal Government and the States wield sovereign powers, and that is why our system of government is said to be one of ‘dual sovereignty.’ *Gregory v. Ashcroft*, 501 U. S. 452, 457 (1991).” *Murphy v. National Collegiate Athletic Assn.*, 584 U. S. 453, 470 (2018).

It is true that the Republic is “‘ONE WHOLE,’” *post*, at 728 (opinion of GINSBURG, J.) (quoting The Federalist No. 82, p. 493 (C. Rossiter ed. 1961) (A. Hamilton)); accord, *post*, at 743 (opinion of GORSUCH, J.). But there is a difference between the whole and a single part, and that difference underlies decisions as foundational to our legal system as *McCulloch v. Maryland*, 4 Wheat. 316 (1819). There, in terms so directly relevant as to seem presciently tailored to answer this very objection, Chief Justice Marshall distinguished precisely between “the people of a State” and “[t]he people of all the States,” *id.*, at 428, 435; between the “sovereignty which the people of a single state possess” and the sovereign powers “conferred by the people of the United States on the government of the Union,” *id.*, at 429–430; and thus between “the action of a part” and “the action of the whole,” *id.*, at 435–436. In short, *McCulloch*’s famous holding that a State may not tax the national bank rested on a recognition that the States and the Nation have different “interests” and “right[s].” *Id.*, at 431, 436. One strains to imagine a clearer statement of the premises of our dual-sovereignty rule, or a more authoritative source. The United States is a *federal* republic; it is not, contrary to JUSTICE GORSUCH’s suggestion, *post*, at 746–747, a unitary state like the United Kingdom.

Gamble and the dissents lodge a second objection to this line of reasoning. They suggest that because the division of federal and state power was meant to promote liberty, it cannot support a rule that exposes Gamble to a second sentence. See *post*, at 729–730 (opinion of GINSBURG, J.); *post*, at 744–745 (opinion of GORSUCH, J.). This argument fundamentally mis-